

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 498

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE LEGISLATURE; AMENDING CHAPTER 4, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-465A, IDAHO CODE, TO AUTHORIZE THE PRESIDENT PRO TEMPORE OF THE SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES TO EMPLOY COUNSEL IN ADDITION TO THE ATTORNEY GENERAL TO PURSUE ACTIONS AGAINST THE FEDERAL GOVERNMENT ON BEHALF OF THE STATE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 4, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-465A, Idaho Code, and to read as follows:

67-465A. EMPLOYMENT OF PRIVATE COUNSEL IN ACTIONS AGAINST THE FEDERAL GOVERNMENT. When, in the judgment of the president pro tempore of the senate and the speaker of the house of representatives, the interest of the state requires counsel in addition to the attorney general to pursue an action against the federal government on behalf of the state, the president pro tempore of the senate and the speaker of the house of representatives may jointly employ such counsel to pursue such actions.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect thirty days after its passage and approval.